

20STCV38021 20STCV38021

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CT%2C08%2F21%2F2026

Source SHA-256: 685fcd47b08949d11bab9114761c5ba5af665159986991d3ebf4d5978e9f1a6

Case Number: 20STCV38021 Hearing Date: August 21, 2026 Dept: T

Farshid

Moossazadeh vs. Avanti Hospitals LLC, et al.

Motion

to Quash Subpoenas

Moving Party: Plaintiff

Farshid Moossazadeh

Responding Party: Defendant

Gardena Hospital LP dba Memorial Hospital of Gardena

Tentative Ruling: Grant

BACKGROUND

This

is a negligence and premises liability action.

On May

18, 2026, Defendant Gardena Hospital LP dba Memorial Hospital of Gardena ("Defendant") issued six deposition subpoenas for the production of business records to Plaintiff Farshid Moossazadeh's ("Plaintiff") nonparty medical providers.

Plaintiff

now moves to quash these subpoenas.

Defendant

opposes. No reply was filed.

MOVING

PARTY POSITION

Plaintiff argues that the subpoenas are overbroad, seek irrelevant documents, and invade Plaintiff's right to privacy, as the requests are not narrowly tailored to avoid disclosure of unrelated private information that is constitutionally protected.

OPPOSITION

Defendant responds that Plaintiff received care for all of the complaints that Defendant is seeking to discover information related to existence and nature of these complaints to the extent that they preexisted the subject incident, as evidenced by the exhibited deposition testimony.

REPLY

No
reply was filed.

ANALYSIS

I. Legal
Standard

Code of Civil Procedure section 1987.1
provides as follows:

If
a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall

declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

(Code Civ. Proc. § 1987.1, subd.

(a).) A motion under this section may be filed by any of several categories of interested persons, including a party. (Code Civ. Proc. § 1987.1, subd. (b).)

California Code of Civil Procedure section 1987.2 provides that “the court may in its discretion award the amount of reasonable expenses incurred in making or opposing [a motion to quash], including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc. section 1987.2(a).)

II. Discussion

Here,

“Plaintiff contends the incident caused significant head, brain, cervical spine, visual, and neurological injuries, resulting in ongoing cognitive deficits, headaches, dizziness, neck pain, vision complaints, and loss of earning capacity.” (Mot., at p. 1.) Furthermore, Plaintiff states in his motion that, in response to Defendant’s form interrogatories, he identified the following as areas to which he suffered injuries related to this action, “Injuries to head/brain; Injuries to eyes; Injuries to neck; Injuries to back; Injuries to shoulders; Irritability; Anomic aphasia; Slurred speech; Depression; Insomnia; and Balance impairments.”

(Id., at p. 5.) In an

attempt to discover evidence concerning the nature and extent of these complaints insofar as they preexisted the subject incident, Defendant issued deposition subpoenas for the production of business records to nonparty providers Rodney Bluestone Medical Corporation, Advanced Medical Analysis, LLC Bluestone, C-Ton Laboratory, Torrance Advanced

Imaging, Torrance Advanced Imaging – Billing, and LAX Pharmacy. (Gauthier Decl. ¶ 1, Exh. A.)

Given

the nature of Plaintiff's claimed injuries and the scope of Defendant's requests, the Court finds that each of the subpoenas are facially overbroad as to the specified period of time for the requested documents and information sought by Defendant. (See Gauthier Decl.

¶ 1, Exh. A.) Although it appears that Plaintiff's medical history concerning the scope and nature of certain of these ailments predate 2011, the temporal scope of the subpoenas is unreasonable invasive on his right to privacy in medical information that has no bearing on the issue of damages.

Thus,
the motion to quash is granted.

RULING

Plaintiff Farshid Moossazadeh's
Motion to Quash Subpoenas is GRANTED. The Court encourages the parties to meet and confer regarding the reasonable scope of the subpoenas prior to the issuance of new subpoenas to these same providers.